

2020-APR-20

MEMORANDUM TO RECREATIONAL GROUPS OF THE SQUAMISH REGION

SUBJECT UNDRIP, Access Privileges, and the Stawamus Chief

BACKGROUND

The Siyám Smánit (Stawamus Chief or the Chief) is an unmistakably prominent granite mountain that stands proud above the town of Squamish, British Columbia. Considered to be one of the largest natural monoliths in the world, its grandeur cannot be done justice with words alone. The Chief is located on the territory of the Sk̓wx̓wú7mesh Úxwumixw (Squamish Nation). Their traditional territory extends over 6700km² along the Southwestern Coast of the province¹. It covers many of the municipalities within the lower mainland, including parts of Vancouver, and extends along the Howe Sound².

From my understanding from a settler's perspective, the Chief is of great historical significance to the Squamish Nation. One of the stories involving the Chief is about a young warrior by the name of Xwechtáal who was tasked with slaying a serpent that was terrorizing the Squamish Nation³. He chased the serpent all the way up the mountain; the hunt went on for four years until he was finally able to kill the serpent⁴. Today, the land is accessed by both Indigenous and non-Indigenous peoples for various purposes.

The Chief and surrounding region draws hordes of recreational users from far and wide; some come to climb the sheer face of the Chief and its surrounding cliffs. Others prefer to hike the backside of the Chief to gain access to one of its three summits and still others will choose to mountain bike the sloping forests below. In the Squamish Valley, recreational and sustenance-based hunting, fishing, and gathering also takes place. In the nearby Garibaldi area, mountaineering, snowshoeing, and backcountry skiing is also popular. The majority of these users, however, come to use this land without ever stopping to consider whose land we are treading on. I too, have been guilty of this.

CURRENT SITUATION

¹ Squamish Nation, *Our Land* (North Vancouver: n.d.) <<https://www.squamish.net/about-us/our-land/>> accessed 15 April 2020.

² Refer to the Squamish Nation site for more detail. *Ibid.*

³ Squamish Chief Magazine, *Siyám Smánit: Stories of the Chief* (Squamish, 2015) <<https://www.squamishchief.com/lifestyles/siy%C3%A1m-sm%C3%A1nit-stories-of-the-chief-1.2066472>> accessed 18 April 2020.

⁴ *Ibid.*

Last year, the provincial government announced that a relatively tiny portion of land near the Chief would be returned to the Squamish Nation⁵. This news was negatively received amongst many climbers amidst fears that a popular rockclimbing area would be closed off. To my knowledge, other user groups have not had an adverse reaction but if this land transfer becomes the first of many then it will become paramount to address future access issues. Hence, it is important to discuss the legal status of these lands and is an opportunity to consider the United Nations Declaration on the Rights of Indigenous Peoples⁶ in the context of recreational land use. While the focus of this article will be on the traditional lands of the Squamish Nation, some of the findings regarding legal status will apply more broadly to present-day British Columbia, since most of the land within this province was not ceded by means of treaties.

The purpose of this article is therefore to examine the land surrounding the Chief with the goal of providing greater awareness to recreational user groups. Note that while both Indigenous and Canadian (colonial) law have overlapping jurisdiction over these lands, I will only be referencing to *law* with respect to the Canadian legal system. I do not possess the knowledge to discuss the former type of law and it would be inappropriate for me to do so without permission.

I will begin by presenting the colonial understanding of land title in Canada, which is that the Crown retains underlying title. I will then explore the possibilities of applying the newly-implemented UNDRIP to this situation. Finally, I will summarize these findings by answering one important question: what does this mean for access privileges to recreational users?

ABORIGINAL LAND TITLE IN CANADA

Canada's colonial history is plagued with sharp dealings with Indigenous Peoples, systemic racism, and dispossession of their land; the law surrounding land title thus reflects this past. The starting point for title in Canada begins with the notion that the Crown holds underlying title to the land. This was affirmed by the Supreme Court of Canada (Supreme Court) in *R v Sparrow*⁷.

The Supreme Court has also held that Aboriginal title exists in Canada⁸, which is consistent with the *Royal Proclamation of 1763*⁹; the nation claiming title bears the burden of proving the existence of this title¹⁰. According to the Supreme Court in *Tsilhqot'in Nation v British Columbia*¹¹, Aboriginal title is the right to the "exclusive use and occupation" of the land¹². It is, however, more complicated than a *fee simple* ownership, one which a homeowner would typically

⁵ Canadian Broadcasting Corporation, *Crown land to be returned to Squamish Nation, including world-class rock climbing area* (2019) <<https://www.cbc.ca/news/canada/british-columbia/land-transfer-murrin-park-climbing-1.5337627>> accessed 12 April 2020.

⁶ UN General Assembly, *United Nations Declaration on the Rights of Indigenous Peoples: resolution / adopted by the General Assembly*, 2 October 2007, A/RES/61/295, available at: <https://www.refworld.org/docid/471355a82.html> [accessed 14 April 2020] [UNDRIP].

⁷ *R v Sparrow*, [1990] 10 SCR 1075.

⁸ *Calder v British Columbia (AG)* [1973] SCR 313 [Calder]

⁹ *Royal Proclamation*, 1763, RSC, 1985, App II, No 1.

¹⁰ *Calder supra* note 8.

¹¹ *Tsilhqot'in Nation v British Columbia*, 2014 SCR 44 [Tsilhqot'in]

¹² *Ibid* at 15.

acquire after paying off their mortgage. The court has thus characterized Aboriginal title as *sui generis*, meaning unique¹³. While Aboriginal title includes the usual rights to enjoyment, occupancy, possession, reaping of economic benefits, and pro-active use and management, it also includes certain limitations¹⁴. These limitations demonstrates the paternalistic relationship that exists between the Crown and Indigenous peoples.

Despite the affirmation of its existence, however, Aboriginal title is seen as a burden imposed on the Crown title¹⁵. The court has also noted that the Crown did not gain title until after it asserted its sovereignty¹⁶ over Aboriginal peoples. In addition, the Crown has the power to extinguish Aboriginal title in certain cases¹⁷. The result is an ongoing tension between pre-existing Aboriginal title and Crown title, which was asserted at a later time.

WHO HAS TITLE OVER THE CHIEF?

Since the territory of the Squamish Nation was never ceded¹⁸, much like the remainder of the lands in British Columbia, the Nation may claim Aboriginal title over this land. To my knowledge and based on my research, this title was also never extinguished by the Crown. This assertion is complicated of course, by the underlying Crown title which maintains that the ultimate ownership falls to the colonial government. In addition, the Chief sits within Stawamus Chief Provincial Park and Protected Area. This means that the government actively manages and controls access and usage to this area under the authority of the *Park Act*¹⁹. The answer, therefore, is that both the Squamish Nation and the Crown simultaneously assert title over this land.

According to the law, therefore, Squamish Nation should have the right to “exclusive use and occupancy”²⁰ over these lands while the Crown maintains underlying ownership. The Nation must, of course, first prove the existence of this title. In reality, however, claims for title can be lengthy processes that do not amount to any meaningful difference for the Nation in question. The Algonquin land claims in present-day Ontario, for example, began roughly forty years ago and are still continuing today²¹. In this claim, only 4% of the Crown land in the claimed area has been proposed to be transferred²². According to the Ontario government, “several years of work remain, including another stage of negotiations and consultations, before a Final Agreement can be reached”²³. A formal land claim over title can therefore be inefficient and may not address the present question of access issues and land management.

¹³ *Ibid* at 72.

¹⁴ First Nations cannot for example, divest itself of the title or make the land incompatible for the use of future generations; *Ibid* at 73.

¹⁵ *Delgamuukw v British Columbia*, [1997] 3 SCR 1010 at 18 [*Delgamuukw*]

¹⁶ *Ibid*.

¹⁷ *Calder supra* note 8.

¹⁸ Certain agreements are in place regarding Kitsilano, tree farming, and the railway; Squamish Nation, *Squamish Nation Today* (North Vancouver: n.d.) < <https://www.squamish.net/about-us/the-nation-today/>> accessed 16 April 2020.

¹⁹ *Park Act*, RSBC 1996, c 344.

²⁰ *Tsilhqot'in supra* note 10 at 72.

²¹ Province of Ontario, *Algonquin Land Claims* < <https://www.ontario.ca/page/algonquin-land-claim>> accessed 18 April, 2020.

²² *Ibid*.

²³ *Ibid*.

THE UNITED NATIONS DECLARATION ON THE RIGHTS OF INDIGENOUS PEOPLES

The focus of this article now shifts towards addressing how the provincial government, notwithstanding its underlying ownership of the Chief area, must consider Indigenous interests – including the fact that Indigenous peoples may have title over this land. The Supreme Court has long established that the Crown bears a fiduciary duty towards Aboriginal peoples²⁴. More recently, however, British Columbia became the first province to enact the United Nations Declaration of Indigenous Peoples, after the federal government failed to keep its promise to do the same²⁵. This new legislation promises more cooperation and consulting between the provincial government and First Nations governments across the province.

UNDRIP concerns international human rights and defines “the minimum standards [required] for the survival, dignity and well-being of the indigenous peoples of the world²⁶.” It sets out certain guarantees and rights, such as freedom from discrimination, self-determination, nationality, practice of traditional customs, and participation in decision-making²⁷. Of particular importance for lands are article 26 and 32²⁸, the relevant parts of which have been reproduced below:

26.2. Indigenous peoples have the right to own, use, develop and control the lands, territories and resources that they possess by reason of traditional ownership or other traditional occupation or use, as well as those which they have otherwise acquired.

26.3. States shall give legal recognition and protection to these lands, territories and resources. Such recognition shall be conducted with due respect to the customs, traditions and land tenure systems of the indigenous peoples concerned.

32.1. Indigenous peoples have the right to determine and develop priorities and strategies for the development or use of their lands or territories and other resources.

32.2. States shall consult and cooperate in good faith with the indigenous peoples concerned through their own representative institutions in order to obtain their free and informed consent prior to the approval of any project affecting their lands or territories and other resources, particularly in connection with the development, utilization or exploitation of mineral, water or other resources.

²⁴ *Guerin v The Queen*, [1984] 2 SCR 335.

²⁵ The Declaration received royal assent on 28 November, 2019; *Declaration on the Rights of Indigenous Peoples Act*, SBC 2019, c 44.

²⁶ *UNDRIP* *supra* note 6 at 43.

²⁷ *Ibid*; Vogel-Nakamura, E. (2019, November 20). *Considerations with Respect to the Inclusion of UNDRIP* [Memorandum]. BC Ministry of Indigenous Relations and Reconciliation.

²⁸ *Ibid*.

These articles affirm the Squamish Nation's right to their lands, and places an obligation on the Crown to recognize and protect such lands. In addition, it requires that the Crown consult and cooperate with the Squamish Nation for any project affecting their land. While laws do not generally apply retroactively, it is clear that *UNDRIP* will be an important tool for Indigenous peoples in the future. In addition, any future developments within the provincial park or respecting their lands will require engaging *Article 32.2*.

It becomes clear through this legislation that the Crown can no longer continue to manage these lands unilaterally and that communication and cooperation will become key elements. And while it will not address the issue of land title, a co-managed area could create the best possible outcome in the *interim*. The provincial government has already shown its willingness to co-manage finfish aquaculture in the Broughton Archipelago Provincial Park²⁹. In this area, the Crown has developed a government-to-government decision-making process with the Kwikwasutinuxw Haxwa'mis, 'Namgis, and Mamalilikiulla Nations. This consent-based process lays out principles and structures to collaborate towards mutually beneficial outcomes in accordance with *Article 32.2*. Many of these principles could thus be applied to a new co-management scheme concerning the province and the Squamish Nation.

WHAT DOES THIS MEAN FOR ACCESS PRIVILEGES?

Since *UNDRIP* is an entirely new piece of legislation to British Columbia, we will need to wait for jurisprudence to evolve in order to fully understand what it brings in terms of rights for Indigenous peoples³⁰. In the meantime, land that remains owned by the Crown can be accessed in accordance with the various rules set out in the *Park Act*. To recreational users such as myself, we must understand that we are guests on these lands and that access to them is a privilege, not a right. We must recognize the land that is purportedly owned by the Crown through underlying Crown title is also owned by the Squamish Nation. As leaders of recreational groups and as stewards of this land, I ask that you take the time to consider increasing education with respect to access through signage, social media, guidebooks, and other means. In addition, I ask that you consider engaging in discussions regarding access with the Squamish First Nation, whenever necessary.

Thank you for your time,

Sincerely,



²⁹ Province of British Columbia, *Re: Letter of Understanding regarding a government-to-government process to address finfish aquaculture in the Broughton Area, including recommendations on Provincial Tenure Replacement Decisions* (Victoria, 27 June 2018) <https://www2.gov.bc.ca/assets/gov/environment/natural-resource-stewardship/consulting-with-first-nations/agreements/lou_broughtonfn_27june2018.pdf> accessed 18 April 2020.

³⁰ Statutory interpretation will be a key component to understanding *UNDRIP*.

Emile Vogel-Nakamura
J.D. Candidate, 2021
Peter A. Allard School of Law
The University of British Columbia

--

Distr. List

Provincial Park Contact – Murrin and Stawamus Chief
Katy Chambers – Katy.Chambers@gov.bc.ca

Climbers' Access Society of British Columbia – Squamish Region
Caroline Walter / cwalter@access-society.ca
Eric Hughes / erichughes@access-society.ca

Squamish Off-Road Cycling Association
info@sorca.ca

Backcountry Skiing Canada
info@backcountryskiingcanada.com

Alpine Club of Canada – Squamish Region
info@accsquamish.ca

Professor Michael Jackson, Q.C.
justice@mjsonlaw.ca